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November 21, 2025

The Honorable Chris Wright
Secretary
U.S. Department of Energy
1000 Independence Ave. SW
Washington, D.C. 20585

Subject: Secretary of Energy's Direction that the Federal Energy Regulatory Commission Initiate Rulemaking Procedures and Proposal Regarding the Interconnection of Large Loads Pursuant to the Secretary's Authority Under Section 403 of the Department of Energy Organization Act

Dear Secretary Wright,

Please see Arevia Power's comments to the Principles for Reform for the ANOPR proposal.

1. To avoid even arguably affecting the States' jurisdiction over generation facilities, facilities used in local distribution or only for the transmission of electric energy in intrastate commerce, or transmissions consumed by the transmitter. The Commission's jurisdiction should be limited to interconnections directly to transmission facilities, consistent with the Commission's seven-factor test.
 - a. **Arevia Power Comment: none**
2. Consistent with the Commission's pro forma LGIP and LGIA, the reforms should only apply to new loads greater than 20 MW and, for hybrid facilities, where the load is greater than 20 MW. We seek comment on alternative thresholds, including whether such a threshold is necessary at all.
 - a. **Arevia Power Comment: Arevia believes that FERC should consider an even larger threshold of above 99 MW, due to the increasing size of Artificial Intelligence data center loads.**
3. To the extent practicable, load and hybrid facilities should be studied together with generating facilities. Such an approach will allow for efficient siting of loads and generating facilities and thereby minimize the need for costly network upgrades. For example, siting a large load near or at the same point of interconnection as a new generating facility could reduce the network upgrades needed to interconnect only the load or only the generating facility.
 - a. **Arevia Power Comment: Arevia supports and strongly recommends studying load and generation and hybrid project together.**
4. Like generating facilities, load and hybrid facilities should be subject to standardized study deposits, readiness requirements, and withdrawal penalties. These provisions deter speculative projects and provide transmission providers with more useful information to more accurately forecast demand on their systems. We seek comment on the extent to which the existing study deposits, readiness requirements, and withdrawal penalties can be adopted. We also seek comment on whether additional commitments or financial penalties would be appropriate.
 - a. **Arevia Power Comment: Arevia would support standardized study deposits. Arevia believes that deposits in lieu of site control and commercial readiness will help deter speculative hybrid projects. However, if a hybrid project has site control and**

commercial readiness satisfied with binding off-take/ load agreements, then they should not be subject to those deposits.

5. Hybrid facilities should be studied based on the amount of injection and/or withdrawal rights requested. For example, a hybrid facility consisting of a 500 MW load and a 600MW generating facility may seek no withdrawal rights and 100MW of injection rights. This provides incentives for co-location with new generation facilities and ensures efficient buildout of the transmission system.
 - a. **Arevia Power Comment: Arevia would support that all hybrid applications contain a minimum amount of withdrawal rights, to ensure that grid reliability can be supported if hybrid generation goes offline. The minimum amount of withdrawal would be applied for by the applicant based on their internal studies of minimum needs to support load.**
6. Any hybrid interconnection shall be required to install the system protection facilities necessary to prevent unauthorized injections or withdrawals that exceed the respective rights. We seek comment on whether other operational limitations should be considered. We also seek comment on the minimum technical requirements for such system protection facilities, whether a hybrid interconnection customer should be subject to penalties for unauthorized injections or withdrawals, how any such penalties should be designed, and how such penalties should be allocated to other transmission customers.
 - a. **Arevia Power Comment: none**
7. The interconnection study of large loads that agree to be curtailable and hybrid facilities that agree to be curtailable and dispatchable should be expedited. The system operator's ability to control such facilities through curtailment and/or dispatch must be sufficient for the system operator to integrate the facility into both operations and system planning. This ensures the timely and orderly addition of large loads to the transmission system in a safe, reliable, and non-discriminatory manner. We seek comment on whether this should be accomplished through a serial interconnection study process or by some other means. We also seek comment on appropriate deadlines for such an expedited study process, including whether such studies can be completed in 60 days.
 - a. **Arevia Power Comment: If the generating component of the hybrid facility is capable of being curtailable and/or dispatchable, then the combined load and generation facilities should be expedited. This implies that the load portion might not be curtailable/dispatchable, but any part of the hybrid facility having that ability will provide benefits to the Bulk Electric System. Arevia supports studying large load projects within the cluster study framework, particularly when paired with a corresponding generation asset. However, Arevia recognizes that implementation of cluster studies may vary based on regional planning process and defers to regional capabilities on this matter.**
8. Load and hybrid facilities should be responsible for 100% of the network upgrades that they are assigned through the interconnection studies. We seek comment on whether such costs should be offset through a crediting mechanism and, if so, over how many years.
 - a. **Arevia Power Comment: Arevia hybrid projects would be responsible initially for 100% of the network upgrade costs, but, if in actual system operation after the hybrid project goes commercial, the system can be shown to operate in a more efficient manner, then hybrid facilities should share in the cost savings.**
9. To the extent the interconnection customer is not the transmission owner, the interconnection customer shall be afforded the same (or equivalent) option to build as currently provided to generator interconnection customers.
 - a. **Arevia Power Comment: Arevia would be open and supportive to this priority.**
10. An existing generating facility that seeks to enter a partial suspension to serve a new load at the same location must go through a system support resource (SSR)/reliability must run (RMR) type study. The study must consider system conditions, including forecasted load growth, at least three years

after the proposed suspension date. The partial suspension can only proceed after any network upgrades needed to ensure reliability are placed into service. Any such network upgrades shall be the responsibility of the generating facility. We invite comments on whether and how resource adequacy should be considered in the SSR/RMR type study.

- a. **Arevia Power Comment: none**
11. Utilities serving large loads, including those at hybrid facilities, should be responsible for transmission service based on their withdrawal rights, as that value amount reflects the quantity of capacity and energy that is being transmitted across the transmission system to the load.
 - a. **Arevia Power Comment: If the Arevia hybrid projects are responsible 100% for NU costs, then that should allow service based on their withdrawal rights.**
12. Utilities serving large loads, including those at hybrid facilities, should be responsible for ancillary services based on peak demand, without consideration of any co-located generation. Any co-located generating facilities will similarly be fully compensated for the provision of ancillary services.
 - a. **Arevia Power Comment: Arevia hybrid (generation) facilities would be capable of providing voltage support as per a “normal” LGIA (+ / - 0.95 PF); but the load would not be capable of any ancillary services, thereby reverting those to the utility.**
13. There must be a plan to implement these proposed reforms. We seek comment on appropriate transition plans, including the treatment of large load interconnections that are already being studied for interconnection.
 - a. **Arevia Power Comment: A high-level generic idea would be implementation similar to FERC Order 2023, with a transition queue for any project that could be considered “hybrid,” then followed by an annual/twice-a-year study as needed.**
14. Utilities serving large loads must meet all applicable NERC reliability standards and OATT provisions. Utilities and we must be prepared to revise large load interconnection procedures and agreements, as necessary. NERC should review its reliability standards to determine if new registration categories or new or modified reliability standards are required to ensure reliability of the BES.
 - a. **Arevia Power Comment: Arevia would support NERC developing separate reliability requirements for hybrid facilities that distinguish between Behind the Meter configurations and “Around the Meter” (collocated generation facility that is partially behind and partially in front of the meter) configurations. Clear standards for each configuration type will ensure that collocated generation and load resources do not undermine reliability of the Bulk Electric System while enabling appropriate flexibility for different facility designs. To be clear, Arevia believes that an In Front of the Meter solution where capacity and generation is sleeved and controlled through the utility within its balancing system is superior in all aspects.**